

TERMS AND CONDITIONS FOR INTERNATIONAL EDUCATIONAL TRAVEL PROGRAMMES

These Terms and Conditions ("**Terms**") govern the booking, participation and use of the international educational travel programmes ("**Programme(s)**") organised by **The Modern Classroom** ("**Company**", "we", "our" or "us").

These Terms and Conditions constitute a binding agreement between the Company and the parent or legal guardian who registers a Participant for, and/or makes any payment towards, a Programme. By registering for a Programme, making any payment, or accepting these Terms through the Company's website or any other mode prescribed by the Company, the parent or legal guardian represents and warrants that they are legally competent to enter into this Agreement, have the requisite authority to provide all necessary consents on behalf of the Participant, and agree to be bound by these Terms and Conditions for themselves and, to the extent legally permissible, on behalf of the Participant. The parent or legal guardian further undertakes to ensure that the Participant complies with these Terms and Conditions and all Programme rules, policies, safety instructions, and codes of conduct issued by the Company from time to time.

1. DEFINITIONS

Unless the context otherwise requires:

- A. "**Participant**" means the student getting enrolled for the Programme.
- B. "**Parent/Guardian**" means the parent or legal guardian who completes the registration process, accepts these Terms and undertakes all obligations on behalf of the Participant.
- C. "**Programme**" means any international educational tour, study visit, cultural exchange, leadership programme, academic immersion, excursion or any other international travel experience organised or facilitated by the Company.
- D. "**Programme Fee**" means the amount payable by the Parent/Guardian towards the Programme, together with any taxes, government charges, currency fluctuation adjustments or additional charges payable under these Terms.

2. ACCEPTANCE OF TERMS

- A. By accepting these Terms, it constitutes a legally binding agreement between the Company and the Parent/Guardian.
- B. The Parent/Guardian represents and warrants that he/she is legally competent to accept these Terms on behalf of the Participant and shall remain responsible for ensuring the Participant's compliance with these Terms throughout the Programme.
- C. No booking shall be deemed confirmed unless the Company has received the completed registration details, all required documents and the applicable payment, and has communicated its confirmation of the Participant's enrolment.

3. REGISTRATION AND ELIGIBILITY

- A. Participation in any Programme shall be subject to the eligibility criteria, age requirements and documentation requirements prescribed by the Company for the relevant Programme.
- B. The Parent/Guardian shall ensure that all information, declarations and documents submitted to the Company are complete, accurate and truthful.
- C. The Company reserves the right to reject or cancel any registration if any information or document is found to be inaccurate, misleading, incomplete or fraudulent, without any liability whatsoever.

4. EFFECT OF PAYMENT, CANCELLATION AND REFUNDS

- A. Upon successful payment of the Programme Fee and acceptance of these Terms, a binding contract shall come into effect between the Company and the Parent/Guardian in respect of the Participant's

enrolment in the Programme, subject to verification of the Participant's eligibility and completion of the documentation requirements prescribed by the Company.

- B. The Parent/Guardian acknowledges that, upon confirmation of the enrolment of the Participant in the Programme, the Company may incur certain financial and contractual commitments with airlines, hotels, educational institutions and other third-party service providers. Accordingly, any cancellation request shall be made in writing and shall be subject to the applicable cancellation charges, including deductions towards non-refundable deposits, third-party charges, visa fees, government levies, foreign exchange losses and other costs incurred or committed by the Company from time to time.
- C. No refund or compensation shall be payable for any unused services, voluntary withdrawal after commencement of the Programme, late arrival, early departure, missed flights, visa rejection, denial of boarding or entry, failure to maintain valid travel documents, or the removal of the Participant from the Programme due to misconduct or breach of these Terms.
- D. The Company reserves the right to recover any increase in airfare, taxes, visa charges, government levies, foreign exchange rates or other operational costs arising prior to the commencement of the Programme due to circumstances beyond its reasonable control. Failure to pay such additional amount may result in cancellation of the Participant's enrolment.

5. PASSPORTS, VISAS AND TRAVEL DOCUMENTATION

- A. The Parent/Guardian shall ensure that the Participant possesses a valid passport and all documents required for international travel.
- B. While the Company may facilitate or assist in the visa application process, the grant or refusal of any visa shall remain solely at the discretion of the concerned embassy, consulate or immigration authority.
- C. The Company shall not be responsible for any visa rejection, delay, refusal, cancellation, administrative error by any visa facilitation agency, or denial of entry or exit by any immigration authority.
- D. Any financial loss arising from visa rejection, delayed issuance, passport defects, incorrect documentation or immigration restrictions shall be governed by the applicable cancellation policy and shall not render the Company liable for any refund beyond what is expressly provided therein.

6. PROGRAMME ITINERARY

- A. The itinerary, travel schedule, hotels, airlines, transportation, attractions, educational institutions, meals and other arrangements are subject to operational availability and may be modified by the Company whenever reasonably required.
- B. The Company reserves the right to substitute airlines, accommodation, transportation providers, destinations, activities or any component of the Programme with equivalent alternatives without affecting the overall purpose of the Programme.
- C. Such modifications shall not constitute a breach of these Terms and shall not entitle the Parent/Guardian to any refund or compensation.

7. THIRD-PARTY SERVICE PROVIDERS

- A. Certain services forming part of the Programme may be provided by independent airlines, hotels, transportation providers, visa agencies, educational institutions, local guides, insurance providers, restaurants and other third-party vendors.
- B. The Company acts solely as the organiser and coordinator of the Programme and shall not be liable for any act, omission, negligence, delay, cancellation, service deficiency, insolvency or default of any third-party service provider.
- C. The parents/guardian shall ensure that the Participant shall remain subject to the terms and conditions of such third-party service providers during the course of the Programme.

8. PARTICIPANT RESPONSIBILITIES

The Parents/Gurlian shall be responsible to ensure that -

- A. The Participant shall comply with all instructions issued by the Company, tour leaders, local coordinators, educational institutions, transportation providers and other authorised representatives during the Programme.
- B. The Participant shall comply with all applicable laws, immigration regulations and local customs of every country visited.
- C. The Participant shall behave responsibly and respectfully and shall not engage in any conduct that may endanger himself/herself, other participants or any third party, or adversely affect the reputation or smooth conduct of the Programme.
- D. The Participant shall not consume alcohol, tobacco, narcotic substances or any prohibited or unlawful substances during the Programme unless expressly permitted by applicable law and authorised by the Company.
- E. The Participant shall be responsible for the safekeeping of his/her passport, travel documents, money, electronic devices, baggage and other personal belongings throughout the Programme.

9. MEDICAL FITNESS AND EMERGENCIES

- A. The Parent/Guardian represents and warrants that the Participant is medically fit to participate in the Programme and has disclosed all relevant medical conditions, allergies, dietary restrictions, disabilities, medications and any other information that may affect the Participant's health or safety during the Programme.
- B. The Company may arrange or facilitate emergency medical treatment for the Participant whenever reasonably considered necessary. All medical, hospital, transportation and related expenses shall be borne solely by the Parent/Guardian.
- C. The Company reserves the right to restrict, suspend or discontinue the Participant's participation in the Programme, or arrange for the Participant's return at the Parent/Guardian's cost, if the Participant is found medically unfit, develops a condition that may endanger the Participant or others, or if any material medical information was not disclosed prior to departure.

10. FORCE MAJEURE

- A. The Company shall not be liable for any delay, modification, suspension or cancellation of the Programme arising out of events beyond its reasonable control, including acts of God, pandemics, epidemics, war, terrorism, political unrest, civil disturbances, natural disasters, adverse weather conditions, strikes, transportation disruptions, government restrictions or any other force majeure event.
- B. In such circumstances, the Company may modify, postpone, reschedule, shorten or cancel the Programme as may be reasonably required and shall not be liable for any consequential loss or compensation.

11. PHOTOGRAPHY AND PUBLICITY

The Parent/Guardian grants the Company the right to photograph, film or otherwise record the Participant during the Programme and to use such photographs, videos or recordings for promotional, educational, marketing and publicity of the Company only, without any additional consent or compensation, unless expressly prohibited in writing prior to the commencement of the Programme.

12. LIMITATION OF LIABILITY

- A. The Company shall exercise reasonable care in organising and coordinating the Programme but does not guarantee that the Programme will be free from delays, interruptions or unforeseen circumstances.

- B. The Company shall not be liable for any loss, theft, damage to personal belongings, injury, illness, accident, delay, missed connections, visa refusal, denial of boarding or entry, acts or omissions of third-party service providers, or any indirect, incidental or consequential loss, except where directly caused by the Company's gross negligence or wilful misconduct.

13. INDEMNITY

The Parent/Guardian shall indemnify and keep indemnified the Company, its partners, directors, employees, representatives and affiliates against all losses, damages, claims, liabilities, costs and expenses arising out of or relating to (i) any breach of these Terms by the Participant or the Parent/Guardian, (ii) the Participant's misconduct or unlawful acts, (iii) any incorrect or incomplete information provided to the Company, or (iv) any claim arising from the Participant's acts or omissions during the Programme.

14. TERM

These Terms shall come into effect upon acceptance by the Parent/Guardian and successful payment of the Programme Fee and shall remain in force until completion of the Programme, without prejudice to any provisions which by their nature are intended to survive.

15. REMOVAL FROM THE PROGRAMME

- A. The Company reserves the right to suspend, remove or repatriate the Participant from the Programme, without any refund, if the Participant engages in misconduct, violates any applicable law or these Terms, poses a risk to the safety or well-being of any person, or acts in a manner that disrupts the Programme or adversely affects the Company's reputation.
- B. All costs arising from such removal or repatriation, including travel, accommodation and other incidental expenses, shall be borne solely by the Parent/Guardian.

16. PRIVACY AND COMMUNICATIONS

- A. The Parent/Guardian consents to the collection, use, storage and processing of personal information of the Participant and the Parent/Guardian for the purposes of administering the Programme, complying with legal obligations and communicating Programme-related information.
- B. The Company may communicate with the Parent/Guardian through email, telephone, SMS, WhatsApp or any other electronic mode using the contact details provided during registration, and such communications shall be deemed to have been duly received.

17. GOVERNING LAW AND JURISDICTION

- A. These Terms shall be governed by and construed in accordance with the laws of India.
- B. Subject to applicable law, the courts at Bengaluru, Karnataka shall have exclusive jurisdiction over any dispute arising out of or in connection with these Terms or the Programme.

18. GENERAL PROVISIONS

- A. These Terms constitute the entire understanding between the Parties in relation to the Participant's enrolment and participation in the Programme and supersede all prior discussions, representations or understandings relating thereto.
- B. If any provision of these Terms is held to be invalid, illegal or unenforceable, the remaining provisions shall continue in full force and effect.
- C. No failure or delay by the Company in exercising any right under these Terms shall constitute a waiver of such right.
- D. The Company reserves the right to amend these Terms from time to time. Any such amendment shall not affect bookings already confirmed unless required by applicable law or communicated to the Parent/Guardian.